

Reason, Faith & Authority: A Shiite Perspective



Mohammad Ali Shomali

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Authors(s):

[Mohammad Ali Shomali](#) [1]

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In this paper, the author discusses the importance of reason in Islam, its relevance and connection to true faith and also explains what authority is in Islam and to whom it belongs. He does so in the light of the Quran and traditions.

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[Faith \(Iman\)](#) [9]

Reason, Faith & Authority: A Shi'ite Perspective

Mohammad Ali Shomali

From a Shi'a point of view, there are four sources on which any investigation about Islam has to be based: the Glorious Qur'an, the Sunnah (including sayings, actions and tacit approval of the Prophet), reason, and consensus. After a careful consideration of these four sources, it becomes clear that the Qur'an and the Sunnah both originate from revelation and that consensus is reducible to the Sunnah. Therefore, there are two types of sources:

- the Qur'an and the Sunnah that constitute the revealed or the transmitted sources (*al-adillah al-naqliyyah*)
- reason or intellect that constitutes the rational source (*al-dalil al-'aqli*).[1](#)

It has to be noted that what has been said above does not mean that every single enquiry must be

based on all the aforementioned sources; rather it means that there is no way to establish the truths about Islam other than referring to one or more of the above sources. There are fields of studies that are completely intellectual such as natural theology or philosophy, and there are fields of study that are purely based on revealed information such as revealed theology, and there are fields that rely on both, such as law and morality.[2](#)

It should also be noted that when Muslim scholars mention the Qur'an and the Sunnah as revealed sources this does not mean that they do not believe in previous revelations. Indeed, it is part of Islamic faith to confirm all the previous prophets and revelations. The only problem here is how to identify what was actually revealed to them. Therefore, whenever something is known to represent a fact or a universal or unconditional rule revealed previously by God, that too, is certainly accepted.

Thus, we can conclude that there are two major common ways to understand and discover religious truths: revelation and reason.[3](#) The Shi'a believe that reason is a reliable source of knowledge and that it is in complete harmony with revelation. According to some hadiths, God has two proofs (hujjah) through which humans can understand His will: the internal one, reason (al-'aql), and the external one, the prophets. Sometimes reason is called, "the internal prophet" and the prophets are called "the external reason". There is an established rule among Shi'a jurists that whatever judgement is made by reason is the same as that made by religion (shar') and vice versa.

In what follows, I will try to explore the status of reason in Islam and then I will refer to different roles of reason in general and in understanding moral values in particular. Having studied revelation and reason as two sources of understanding Islam, I will briefly refer to the Shi'a understanding of faith and authority.

The status of reason

Islam regards reason as one of the greatest blessings bestowed by God on human beings. It is by means of reason that we understand ourselves and the world around us. It is by means of reason that we realise the necessity of investigating our origin and the One who has created us. If we had no reason, we would not be responsible for our acts or beliefs. In Shi'i Islam in particular, great emphasis has always been placed on reason and the rational sciences. This emphasis derives from the Qur'an and the traditions of the Prophet and the Imams of his household. The Qur'an says in several verses:

Surely there are signs in this for those who ponder. (13:4; 16:12; 30:24)

The Qur'an also condemns more than once those who do not think or use their reason. The following two traditions, selected from the large number of hadiths available on the subject, show the place of reason in Shi'a belief. Imam Sadiq (A.S.) says:

Whoever has intellect has faith and whoever has faith will enter Paradise.[4](#)

With reason one comes to understand the truth, to believe in Islam and follow the teachings of the

Prophet, and consequently will be able to enter Paradise. In an insightful hadith addressing one of his companions, Hisham b. Hakam, Imam Musa Kazim said:

With reason God completes His proof. God has equipped His prophets with the ability of expressing their ideas in a way that all people can understand. God has shown people His lordship through reason.

Then the Imam recited the following verse of the Glorious Qur'an,

“Your God is the One God, there is no god but God who is the Compassionate the Merciful...Surely in the creation of the heavens and the earth and in the alternation of days and night, and in the ships that move in the sea, and in the rain that descends from the sky to bring life on the earth, and all kinds of animals that God has spread over the earth, and also in the movement of the wind and the clouds which God has kept between the earth and the sky– in all these there are signs for those who are thoughtful.” (2: 163 & 164)

Then the Imam said:

God has made these signs a proof to show people that they have a Creator Who arranges everything for them and Who directs everything, because God then says “surely there are signs in these facts for those who use their reason”.[5](#)

Many other references to the Qur'an are made in this tradition to show that God in His final message considers reason as the only means by which human beings become responsible. It is unanimously accepted that one of the conditions of moral or legal responsibility is to have sound reason. If someone is insane, he is not considered as responsible for his acts. What is expected of people in religion also varies according to their mental and rational capacity. Those with a higher degree of intelligence or learning are expected to be more knowledgeable, pious and obedient than others.[6](#)

On the continuity and development of the philosophical tradition, S. M. H. Tabataba'i (1892–1981), who was the most celebrated contemporary master of Islamic philosophy, writes:

In the same way that from the beginning Shi'ism played an effective role in the formation of Islamic philosophical thought, it was also a principal factor in the further development and propagation of philosophy and the Islamic sciences... In the same manner, in the other intellectual sciences, there appeared many outstanding figures such as Nasir al-Din Tusi (who was both philosopher and mathematician) and Birjandi, who was also an outstanding mathematician.

All the sciences, particularly metaphysics or theosophy (*falsafah-i ilahi* or *hikmat-i ilahi*), made major advances thanks to the indefatigable endeavour of Shi'ite scholars. This fact can be seen if one compares the works of Nasir al-Din Tusi, Shams al-Din Turkah, Mir Damad, and Sadr al-Din Shirazi with the writings of those who came before them.[7](#)

On the place of intellectual sciences among the Shi'a, Yann Richard writes:

Today, however, one of the originalities of Shi'ite Islam is to recognize that metaphysical speculation and

philosophical discourse have a certain place in religious knowledge. The Centre for Theological Studies at Qom is certainly the only place of Islamic studies in the world where one dares comment on the philosophical treatises of Aristotle or Avicenna, and where the post-Platonic philosophical tradition has remained alive. Ayatollah Khomeini was known at Qom up till the beginning of the 1950s for his philosophy course.⁸

Different roles of reason

In general, reason contributes to religious sciences in the following major areas:

I. The first step towards religion, inquiring into it and searching for its truth, is taken by reason. It is reason that drives us to take the issue seriously and tells us that our interests would be harmed if the claims of religion are true and we fail to discover and believe in them. According to the Qur'an, God requires all human beings to exercise their rational faculty and to ponder on His signs and communications in the universe. On many occasions disbelievers are condemned and criticized because of their failure to think or to act according to rational requirements. For example, they are condemned because of their blind imitation of their ancestors, and there are many verses containing rhetorical questions calling on people to think, such as the following: "Do not they think?", or "Do not they ponder?"

II. The second role of reason is to set up standards and logical processes for reasoning and for inference from the Scriptures. Once we have started our research and investigation, it is again reason that instructs us on how to think and how to argue. It is also reason that tells us to be fair and committed to the truth during and after the entire process of rational discovery.

III. The third is to understand the realities of the world, such as the existence of God and the truth of religion. The Shi'a believe that by the exercise of reason every person can come to understand that God exists, that He has sent certain people as His messengers, and that Resurrection will take place. Indeed, it is obligatory for every Muslim to examine and question his beliefs until he attains certainty, and to be able to support his beliefs with valid logical arguments, including the intellectual ones. Muslims are not allowed to say that they believe in God for no particular reason, or call themselves Muslim simply because their parents are Muslim, or because they were born in a Muslim community.

Faith is a matter of reasoning, not of imitation. Everyone is advised to secure his faith with sound arguments. In this way, one can have complete confidence in his belief, and nothing can cause him to doubt it.⁹ Of course, once the truth of a given prophet or book is established, many further truths can be learnt from that prophet or that book.

IV. The forth is to understand and present moral and legal principles, such as the wrongness of oppression and the rightness of justice. Details are, of course, provided by religious sources, although the process of understanding the Scriptures and the implications of religious judgements again is

governed by reason. For example, if God says that you must perform *hajj* (the pilgrimage to Mecca), it rationally implies that we must make all necessary preparations, such as buying tickets or obtaining a visa.

If there is a conflict between two obligations such as saving an innocent life and performing our prayers, what should we do? In this case, even if there is no explicit or specific religious instruction we still rationally understand that we must act according to the certain and clear judgement of our reason, which is to save the person's life.

All the above roles of reason are recognised and, indeed, encouraged and urged in Islam. In contrast, the role of revelation or the scripture in religious sciences can be summed up as follows:

- confirming truths that are already known by reason;
- teaching truths that are not known by reason, such as the details of the resurrection and detailed injunctions of moral and legal systems;[10](#)
- establishing due recompense sanctions through the religiously determined system of reward and punishment.

Here I should make two points:

- a. One has to distinguish between the decisive and certain rational judgements and things such as guessing or personal opinions or weak arguments. There have always been some people who introduced their ideas, or even they themselves thought so, as enjoying rational grounds, while after consideration it becomes clear that there is no basis for such a claim. Similarly, there are people who represent their ideas as Islamic ideas, while religious sources do not support them in any known way.
- b. Although reason is recognised as an independent source of knowledge, it has its own limits. There are many things on which reason has no judgement and is silent, because they are beyond its scope. Therefore, there might be many things that we can understand by other ways of understanding such as perception, intuition or revelation that do not fall in the scope of reason.

You can not really understand through rational arguments how a rose smells or what a mother feels when her child is dead. In respect to religious issues, there are many facts that are not knowable by reason, such as many details of the resurrection. What is important is that there is nothing in Islam that contradicts reason. One must therefore distinguish between what lies beyond one's actual rational capacity and what conflicts with rational standards.

Thus, we should not base our acceptance of religious facts on finding a rational proof or justification for them, though they must be rationally possible. The Qur'an sometimes uses the expression of "vision" and attributes it to the heart for some type of knowledge which is much higher than perception and rational knowledge. For example, on the ascension of the Prophet Muhammad to the heaven, the Qur'an says:

” ما كذب الفؤاد ما رأى “

The heart did not tell lies about what it saw. (53: 11)

Role of Reason in understanding Moral Values

Now let us study in more detail the role of reason in understanding moral good and bad or what is right and wrong. This has been an important issue for all religious traditions, especially Judaism, Christianity and Islam. According to “Divine Command Theory”, “good” or “morally right” means “Commanded by God”, and “bad” or “morally wrong” means forbidden by God.”^{[11](#)}

On the other hand, there have also been some theologians who have argued for rational approach to ethics. They believed that there are independent criteria of good and bad that can be understood by our reason. God's commands are not arbitrary and we can exercise rational methods to discover moral norms. Among Muslim theologians, the Ash'arites held the former view and the Shi'a and the Mu'tazilites held the latter.^{[12](#)}

According to the Ash'arites, all values are determined by the will of God and moral concepts such as 'good' and 'right' have no meaning other than 'that which God wills' or 'what is commanded by God'. These words have no objective meaning. According to the Shi'a and the Mu'tazilites, values such as justice and goodness have a real existence, independent of anyone's will, even God's.

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Based on the above question, the other controversy concerns the question of whether good and evil are rational (*al-husn wal qubh al-'aqliyy*) or revealed. The Shi'a and the Mu'tazilites believed that good and evil are objective and therefore can be known rationally. Allamah Hilli, a great Shi'a scholar, in his comments on *Al-Yūqūt* by al-Nawbakhti writes:

The principle, on which the problems concerning justice depend is that God is the Wise, He never does an evil action and He never fails to perform any necessary (*wājib*) action. When this principle is proved questions concerning justice, such as goodness of obligation (*taklif*), necessity of Grace (*lutf*) and the like are constructed upon. And since this principle depends on knowing good and evil and their rationality,

the author started his discussion with these. [13](#)

Else where he writes:

Imamites and their followers, the Mu 'tazilites, believe that goodness and badness of some actions are known by reason evidently such as our knowledge of goodness of beneficial telling truth and badness of harmful lies, on which no reasonable person have doubt, and his certainty about this is not weaker than his certainty about the need of a contingent being [in its existence] to a cause or about the equality of two things which are each equal to a third thing.

They believe that there are some actions, understanding of whose goodness or badness needs reflection such as goodness of harmful telling truth and badness of beneficial lies, and finally that there are some actions, on which reason is unable to make judgement and their goodness and badness is to be expressed by the religious law, *Shar'*, such as [how to perform] worships. [14](#)

On the other hand, there are the Ash'arites who deny rationality of goodness and badness. Shahrestani in his *Al-Milal wa al-Nihal* describes the idea of Ash'arites as follows:

All obligations are to be learnt from the scriptures. Reason (*al-'aql*) does not make any thing obligatory and does not make anything deserve to be considered as good or bad. Thus, knowing God becomes possible by reason and becomes obligatory (*wajib*) by the scripture (*sam'*). God, the most High, says:

“We have never chastised unless we have despatched some messenger”. (The Qur'an, 17: 15)

Similarly, gratitude to the blessing-giver, rewarding the obedient and punishing the disobedient all become obligatory (*wajib*) by the revealed, and not reason. (Vol. 1, p. 115)

In contrast, the Shi 'a and the Mu 'tazilites have argued that if goodness and badness were just religious and not understandable by reason, unbelievers would not recognise them today or before they knew of revelations e.g. the Qur'an. But we know that there are many common values and moral principles among both theists and atheists. 'Abd al-Jabbar, a great Mu 'tazilite theologian, says: “any sane person knows his obligations even though he does not know that there is a commander and forbiddor” (*Al-Mughni*, Vol. 1, p. 45).

The Qur'an in fact implies in many statements that knowledge of what is obligatory, good, and evil is accessible to everyone,

“Surely God bids to justice and good-doing and giving to kinsmen, and He forbids indecency, dishonour and insolence”. (16:92)

These virtues and vices must have been understood as such prior to revelation. The objectivity of ethical value is asserted or implied all through the Qur'an. For instance, the repeated commands of God to do what is right would be empty of force and spirit if they meant only “commands to do what He

commands". It is even harder to make sense of statements that God is always just to His servants on the supposition that "just" means "commanded by God".

None of this means, of course, that humans are not in need of religious guidance. The argument is rather that in order to benefit fully from religious guidance, humans have been endowed with reason, and it is only when they are thoughtful and rational that they can comprehend revelation. The truth of religion and the principles of morality are understood by reason, but there is much more to be learnt from revelation. According to Shi'a thinkers, religion can provide us with a fuller and more comprehensive account of morality, and moreover motivates us to observe moral requirements.

Faith & Reason

Before we study the relation between faith and reason we need to know more about the nature of faith.

The Nature of Faith

Faith is a voluntary act of human kind, although some degrees of faith may require special grace and guidance of God. Man needs to try to be faithful and make preparations for faith. One reason for holding faith as a human act is that according to the Qur'an the people are held responsible or accountable for being faithful or non-faithful. People, on occasions, are blamed in the Qur'an for their failure in becoming faithful and this shows that it is because of their own decision.

The other reason is that in the Qur'an or hadiths people are encouraged to have faith by referring to its good outcomes. The other reason is that faith may decrease or increase depending on human practices and characters. Imam Ali (A), the first Shi'ite Imam, says: "Do not be jealous because jealousy eats away faith just as fire eats away dried wood."¹⁵

Among philosophers of religion, there are two main views about the nature of faith: the propositional view which takes faith as "belief that" (*fides*) and the non-propositional which takes faith as "belief in" (*fidusia*). Of course, each may imply the other secondarily and in practice a faithful person is the one who both believes that God exists and trusts Him. However, the question is which one primarily constitutes the faith

Reflecting on relevant verses of the Glorious Qur'an, normally the assumption among philosophers of religion is that in Islam faith has a propositional nature. For example, we read:

"... the believers; they all believe in Allah and His angels and His books and His apostles; we make no difference between any of his apostles; and they say: we hear and obey, our Lord". ¹⁶

"the believers are only those who believe in Allah and His Apostle then they doubt not". ¹⁷

I think faith means acceptance of or submission to certain truths and involves three elements, but it is

not identical with any of them:

(a) A heartfelt knowledge. This knowledge is propositional. No one can be faithful while he is in doubt. It should be noted that according to the Glorious Qur'an, faith is different from knowledge, because sometimes a person may have knowledge in its most certain form, but lack faith. Sometimes people know some truths, but deny them unjustly or arrogantly.¹⁸ The knowledge, thus, prepares the ground for faith, and faith needs knowledge; but it is not knowledge.

(b) A verbal declaration of that heartfelt knowledge.

(c) Acting in accord with that knowledge. The believer in his life must work in harmony with that knowledge he has, otherwise there would be no benefit in that knowledge. When Imam Ali (A) was asked about belief, he said: "Faith involves appreciation with heart, acknowledgement with tongue and actions with limbs."¹⁹

Thus, faith is a voluntary act for which knowledge is a pre-requisite) and should imply declaration with tongue and practice with limbs. Faith is a reality that might decrease or increase. Taking into account all the above aspects of faith and based on the Qur'an and the Sunnah, I believe that faith consists in submission to certain truths, such as existence of God (God exists).²⁰

Therefore, faith is neither "belief that" nor "belief in". One may believe that something is true and at the same time deny or reject it. Among those who believe in basic religious truths and commit themselves to those truths, some people may be prepared to commit and submit themselves just in declaration of faith, some may be prepared to fully or partly practice their faith and some may be prepared to submit their entire reality including acts, heart and mind to God.

Faith may also have degrees according to different degrees of the required knowledge or different degrees of the consequent acts.

Faith requires reason

As we saw above, reason comes before faith, and proves the existence of God and His attributes, like His omnipotence, omniscience, goodness and charity, and etc. For this purpose, there are many intellectual discussions in the Shi'ite theological books and, indeed, one part of Islamic theology is called "intellectual kalam". Imam Sadiq (A) referred to faith as a soldier of reason or its minister.²¹ And in another narration, he said: "with reason, worshippers know their Creator, and know that they are creations of Him and He is their Lord ... and with reason the worshippers separate good and evil acting and ..."²²

Faith, however, is more than knowledge; reason, by securing required knowledge, just prepares the ground for faith. In the end it is the individual himself that decides whether to commit himself or not. A person becomes faithful and a believer only when he has respect and love for certain facts i.e. articles of

faith. Once the Prophet Muhammad asked his companions of “the firmest handhold of faith”.

They suggested different things like prayer and hajj. When they could not give the appropriate answer the Prophet said:

“The firmest handhold of faith is to love for the sake of God and to hate for the sake of God, to befriend God's friends and to renounce His enemies.”^{[23](#)}

The same idea is emphasised by Imams of the Household of the Prophet. For example, in reply to the question whether love and hatred derive from faith, Imam Sadiq said: “Is faith anything but love and hate?”^{[24](#)} It is also narrated that Imam Baqir said: “The faith is love and love is the faith.”^{[25](#)}

Faith supports and strengthens reason

With disbelief, reason loses its power and sharpness and may fail to discover or acknowledge even trivial facts. Disbelievers are like those who walk in darkness and do not know which path they have taken:

“God is the guardian of those who believe. He brings them out of the darkness into the light; and (as to) those who disbelieve, their guardians are Satans who take them out of light into the darkness...”^{[26](#)}

That is to say, they do not know about their world and their purpose of life. They have no insight about reality. In Islamic thinking, two kinds of guidance must be distinguished: primary or inclusive guidance and secondary or exclusive guidance. The former is for all humans, with which mankind potentially might acquire and obtain some initial knowledge about the world and its creator and the need for prophecy and religion. The latter is only for believers. The Qur'an says:

“Surely (as for) those who believe and do well, their Lord will guide them by their faith.” (10:9)

“Those who guided, We will add their guidance.” (47: 17)^{[27](#)}

Reason after faith is different from reason before faith. Faith helps reason to have complete function. Faith without reason is blind and reason without faith is crippled and barren. Faith opens for reason realms other than worldly life and reason makes grounds for true belief and faith.

Authority

In Islam, everything originates from God. Islam also emphasises that, 'There is no authority except for God and whoever is appointed by God'. In what follows, I will try to refer to the principles, on which the Islamic view on authority is based:

Principle One: Obedience belongs only to God

God is the only One that we have to obey. Independent from Him, nobody can ask for obedience. He has created us free. Why should anyone obey men like Nimrod or Abu Sufyan or the arrogant people of his time? God has created us free so that nobody can ask us to obey him.

Principle Two: Human freedom

We are free. This is philosophically true because no one has complete control upon our decision or acts by himself. This is also morally and politically true because no one other than God has authority upon us and therefore needs to be served or obeyed. In a well known hadith, Imam Ali (A) says:

“Do not be a servant of other people. God has created you free.”

Principle Three: Delegation of obedience

God, due to some benefits for us, may ask us to obey some people or groups of people, e.g. our parents. We obey our parents because God has asked us to obey them.²⁸ As a result, if they want us to disobey God then we would not obey them. The general rule (without exception) is: **There is no obedience to the creature in the disobedience of the Creator.** Thus, when obeying the legitimate leader one first of all obeys God and then the position of leadership and not the person *per se*. Even the person who is a leader, he himself must respect the position of leadership and act according to his commands as a leader.

Principle Four: Authority of the Prophet

As we saw above, the authority or the right to be obeyed originally belongs to God, but God Himself may have given this authority in a limited or unlimited way to others. Above all, the Prophets were given this authority. Among the Prophets, some had more authorities including the authority to rule. The Holy Qur'an is very clear in this regard and we can find many verses about the Prophets who have had this position, e.g. the Prophet Abraham and the Prophet David.

The Prophet Muhammad was not just asked by God to recite and teach the Holy Qur'an; he was also asked to rule, that is, to implement the Qur'anic rulings in the socio-political life of the nation. The following verses indicate the necessity of obedience to the Holy Prophet:

'O you who believe! Obey God and obey the Apostle and those in authority from among you!'
(4:59)

'The Prophet has a greater claim on the faithful than they have on themselves.' (33:6)²⁹

To have a better idea, we should note that there were three areas in which the Prophet exercised his

authority:

First: Delivering Divine Message

For delivering the Message, he was answerable to God. Teaching Islam and delivering the Message involved reciting the Holy Qur'an to the people, teaching them the Holy Qur'an, teaching them moral values, and exemplifying in his life those values.

Second: Judgement

One of the roles of the Prophet Muhammad was to judge among the People. The Qur'an says:

***'Surely We have revealed the Book to you with the truth that you may judge between people by means of that which God has taught you.'* (4: 105)**

To judge is only for God, the Holy Prophet and those who are given authority by God. The Qur'an says:

***'O David! Surely We have made you a ruler in the land; so judge between men with justice...'* (38:26)**

Therefore, if a judge is appointed by an unjust ruler, he has no authority to force people to abide by his judgement. It is a principle of Shi'i *fiqh* (jurisprudence) that the judge must be appointed by a just ruler who in turn gets his authority from God.

Third: Rule

The Prophet as reinforced by himself at Ghadeer al-Khum, had the position of *wilayah*, that is, the authority to rule and the people needed to obey him. The Prophet asked the crowd:

"Do I not have a greater right on your souls than you yourselves have on them?"

They answered with one voice:

"The Apostle of God has a greater right on our souls than we ourselves have on them".

The Prophet has more authority on the believers than what they have on themselves. Why? This is because God has this authority and has given it to the Holy Prophet.

Principle Five: Delegation of the Prophet's Authority to Imam Ali

and successive Imams

In the same event, the Prophet was asked by God to transfer this same authority to Imam Ali. He was commanded to tell the people that which, if he did not tell, was as though he had not delivered the entire message.

“All those men and women who acknowledge me as their Master, I want them to acknowledge (at this point he held Imam Ali's hand and lifted it high over his head) Ali also as their Master. Ali is the Master of all those men and women whose Master I am.”

This indicates the point of delegation of the Holy Prophet's authority to Imam Ali by divine command.^{[30](#)} As soon as this announcement was made, the following verse was revealed:

“This day I have perfected for you, your religion and have completed My favour upon you, and have chosen for you Islam to be your religion.” (5:3)

We also read in the Qur'an:

“Only God is your Guardian and His Apostle and those who believe. Who perform prayer and pay alms while they bow”. (5:55)^{[31](#)}

The Shi'a believe that the Imams who succeeded the Prophet continued the same roles in presenting Islam (teaching and preaching), judging and leading the society. The difference was that there was no further revelation after the demise of the Prophet; all knowledge of Imams was received from the Holy Prophet.

Principle Six: Delegation of the authority of Imams to the jurists

During the time of the occultation of the Imam Mahdi (A), in which they have no direct access to the Imam, the Shi'a *fuqaha* (jurists) inherit the authority which was originally given by God to the Prophet and then to the Imams. In what follows, I will first describe the concept of *faqih* and then refer to the extent of the authority that a Shi'a *faqih* has. Of course, a proper review of the topic needs a thorough discussion about the institution of *marji'iyya* and that of *wilayat al-faqih* (mandate of the jurist), including their requirements and responsibilities.

Who is a faqih?

A *faqih* or *mujtahid* or *Ayatollah* is the one who has the quality of *ijtihad*. Technically, *ijtihad* means 'the process of deriving religious rulings from their religious sources'. For example, it is the role of such person to discover Islamic view on banking or politics or international relations. Of course, the procedure is very sophisticated.^{[32](#)} Sometimes for one single *fatwa* (edict) to be issued, *ijtihad* might involve weeks

of enquiry and investigation of religious sources. Obviously ijtihad must be based on revelation and reason.³³

The role of jurists in the time of minor occultation

The period of the presence of the Imams ended in the year 260AH, when Imam Askari was martyred. This period is called *'asr al-zuhur* (the age of the presence), in contrast to *'asr al-ghaybah* (the age of the occultation).

In the time of the presence of the Imams, the role of Shi'a jurists was not very complicated since most of the time there was more or less the possibility of referring to the Imams personally and asking them for guidance.³⁴ Of course this was not always easy and free from risks. Therefore, during the time of the Imams, they trained a group of the companions to start ijtihad, to start deriving specific rules from general rules. In a clear and very well known *hadith* (narration), Imam Sadiq said to one of his companions:

"Our task is to give you the principles and your task is to derive the implications".

There are also cases in which the Imams have asked some of their companions, e.g. Aban ibn Taghlib to issue *fatwa* for the Muslims.

After the martyrdom of Imam Askari, the Shi'a started to experience a new age in which they could not visit their Imam (i.e. the 12th Imam). This was the period of the minor occultation. The 12th Imam personally appointed four individuals (one after the other) to act as representatives for himself to the Shi'a community. These deputies of the Imam were called the *nuwwab al-arbi'ah* (the Four Deputies) including Uthman ibn Sa'id, his son, Muhammad ibn Uthman, Husayn b. Ruh and Ali b. Muhammad al-Saymuri respectively. When the Shi'a had questions for the Imam they referred to these deputies who then acted as a means of communication between the Shi'a and Imam Mahdi.

One reason for having this state was to prepare the Shi'a for the next age, which is known as *ghaybat al-kubra* (the major occultation). Before Ali ibn Muhammad died, Imam Mahdi gave him a message. This message was a condolence to the Shi'a for losing him (in advance) as he was the last means of communication to the Imam and a command to Ali b. Muhammad not to introduce anyone as the deputy after himself. So with the passing away of Ali b. Muhammad, the major occultation started. In this period no particular person was appointed as deputy and the age of generally appointed deputies (*al-na'ib al-'amm*) started.

The scope of the authority or deputyship of faqih is one of the most essential elements of the Shi'a political doctrine. In what follows I will try to briefly point out the main areas of this authority:

Authority in presenting Islamic rulings and issuing fatwa: A Faqih is the one who has the authority in presenting Islamic views on practical issues including moral and legal ones e.g. abortion, euthanasia,

banking, insurance and marriage. With respect to the beliefs, everyone is responsible to investigate and inquire about the principles of the faith by himself and cannot rely on anyone. Of course, having proved the truth of the religion for himself, one can refer in details to the experts. Expertise needed for doctrinal issues include great knowledge of both intellectual and revealed theology and it is obvious that to be able to understand the revealed theology one needs to master the methodology of understanding the Qur'an and the Sunnah which is provided in fiqh and its principles.

It has to be noted that a faqih or any other scholar has no authority to legislate or alter the laws. His role is just to do his best to understand the religious position by scholarly consulting the Scriptures and reason.

This type of authority is unanimously accepted.

Authority in judging: This is also unanimously accepted.

Authority in administering hisbah affairs: It is unanimously accepted that a Faqih is responsible for administering hisbah affairs i.e. those things that we know for sure the Legislator is not pleased with them being ignored or unattended, even though they are not as such or primarily obligatory. For example, if there is an orphan who possesses some money but he has no guardian to look after his money to his best interest all Shi'a faqihs say that this is responsibility of the just faqih to undertake such task. Or if there are properties whose owners are unknown it would be again the responsibility of faqih to protect them from being wasted. Any social affair with whose negligence the Legislator is not pleased, thus, must be undertaken and supervised by the just faqih.

Authority in ruling the society: As we saw above, there is no doubt among the Shi'a scholars that the faqih has responsibility and authority for getting somehow involved in socio-political spheres. Islam is to bring happiness by offering a comprehensive plan of life and it is job of the faqih to understand, present and implement this plan. No one can remain indifferent in respect to what happens in the society and the knowledgeable people have greater responsibility.

Unlike some faqihs who had the idea that the authority of faqih in socio-political affairs is limited to hisbah affairs, some have had the idea that the Faqih has all the power needed to rule the society. The Ayatollah Khomeini has said:

'By authority we mean governance, the administration of the country and the implementation of the sacred laws of the Shari'ah. This constitutes a serious and difficult duty but does not earn anyone an extraordinary status or raise him above the level of common humanity. In other words, authority here has the meaning of a government, administration and execution of law. Contrary to what many people believe, it is not a privilege but a grave responsibility.[35](#)

This is echoed in the constitution of Islamic Republic of Iran as follows:

'The powers of government in the Islamic Republic of Iran are vested in the legislature, the judiciary, and the executive powers, functioning under the supervision of the absolute religious leader and the

leadership of the Ummah.' (Article 57)

Thus, it becomes clear that in Shi'i Islam the authority primarily belongs to God and then to the people with whom God is pleased. After the Prophets and Imams, just faqihs are granted such authority. The main requirement for having such authority is justice and deep acquaintance with the religious sources, i.e. the Qur'an, the Sunnah and reason. Reason is one source and at the same time reason helps us to define the proper method for understanding the first two (the Qur'an & Sunnah). Once again it becomes clear how important reason, justice and piety are for Shi'i Islam.

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1. By "reason" we mean an instrument or a faculty of understanding of theoretical knowledge and practical knowledge. With the first, we can obtain some knowledge about existing things in the world, and with the second we can acquire some knowledge about what humans must or must not do. In other words, reason enables us to know what is there in the world and ability to know what one ought to do. For example, see Muhammad Taghi Misbah Yasdi, *Dorus-e Falsafe-ye Akhlag*, Ettela'at Publications, Tehran, 1994.

2. Al-Ghazali, a renowned Sunni thinker from the Ash'arite tradition, divides theological issues into three categories: issues that can only be known through religious sources, issues that can only be known with the intellect, and issues that can be known in both ways. He mentions the visibility of God (according to the Ash'arites, God is visible, at least in the Hereafter) as an example for the first category and exclusiveness of creating movements to God for the second category.

With respect to cases in which both intellect and naql (transmitted knowledge) have judgement, al-Ghazali adds that whenever we receive something from religious sources, we have to see what the rational judgement is. If intellect allows us to do so we have to follow the religious sources. But if that thing is rationally impossible we have to interpret that text in another way, since there is no disharmony or contradiction between religion and intellect. Then, al-Ghazali adds that in cases in which intellect is silent again we have to accept and follow the demands of religious sources. He insists that rational permission for possibility of something is not required. What is really required is to be free from rational impossibility. "There is a [subtle] difference between these two, which unintelligent people sometimes fail to recognise." [Al-Iqtisaad fi al-I'tiqad, (Arabic), p. 133]

3. Things which are understood through personal intuitions or mystical experiences are valid for the very person who has had these intuitions or experiences, and is certain about the truth and validity of them or beliefs which are based on them. However, these are not included in our discussion here, partly because this sort of knowledge cannot be communicated through discussion or argumentation to others. The only way to learn and accept these issues is to undergo the same experiences.

4. Ussul al-Kaafi, Vol. 1, p. 11.

5. Ibid., p. 13.

6. For example, we read in a divine saying (al-hadith al-qudsi) in Usul al-Kafi, the Book of Reason & Ignorance that "God rewards and punishes people in proportion to their reason".

7. Tabataba'i, *Shi'ite Islam*, Part II, "Outstanding Intellectual Figures of Shi'ism".

8. Richard, p. 61.

9. M. R. Muzaffar in his commentary on reason says the following:

We believe that Allah has endowed us with the faculty of the intellect ('aql), and that He has ordered us to ponder over His Creation, noting with care the signs of His Power and His Glory throughout the entire universe as well as within ourselves. It is stated in the Qur'an:

"We shall show them Our signs on the horizons and in themselves, till it is clear to them that it is the Truth." (41:53)

Allah has shown His disapproval of those who blindly follow the ways of those who were before them:

"They say: 'No, but we will follow such things as we found our fathers doing'. What! And if their fathers had no understanding of anything." (2:170)

And He has shown His dislike for those who follow nothing but their own personal whims:

"They follow naught but an opinion." (6:117)

Indeed, our intellect forces us to reflect upon Creation so as to know the Creator of the universe, just as it makes it necessary for us to examine the claims of someone to prophethood and to consider the truth of his miracles. It is not correct to accept the ideas of someone without criticism, even if that person has the gift of great knowledge or holds an esteemed

position.

[10.](#) Having verified the truth of the Prophet or the Qur'an, we come to know many things that we were unable to know by ourselves, because of our lack of access to certain realms of reality or certain evidence.

[11.](#) In this regard, George Hourani says:

"It (Ash'arite view, or what he calls 'theistic subjectivism', or what others have called 'ethical voluntarism') is not peculiar to Islam, since it occurs in medieval Judaism and occasionally in western thought; but it was probably more prominent and widespread in Islam than in any other civilization." (1985, p. 57)

[12.](#) Despite some differences in positions of the Shi'a and the Mu'tazilites, they are both called "ahl al-'adl" (the people of justice), because they both believe in independent moral values and in the existence of rational criteria for judging what is good and what is bad, and because a proper defence of the principle of divine justice depends on the belief in independent and rational good and evil.

[13.](#) Anwar al-Malakut fi Sharh al-Yaqut, p. 104.

[14.](#) Nahj al-Haqq wa Kashf al-Sidq, p. 82.

[15.](#) Imam Ali, Nahj al-Balaghah, Sermons, no. 86.

[16.](#) Qur'an, 2:285. This verse indicates that the believers are those who believe that Allah, His angels, His books and His apostles are true.

[17.](#) Qur'an, 49:15. This verse indicates that the believers are only those who believe that Allah and His Apostle are true.

[18.](#) Qur'an, 27:14.

[19.](#) Imam Ali, Nahj al-Balaghah, Sayings, no. 227.

[20.](#) According to the Glorious Qur'an, the objects of faith include: God (2:62) and His attributes (67:29); the day of Judgment (2:62); God's Apostles and His revelations to the apostles (2:285; 3:53); God's Angels (2:285) and the invisible world (2:3).

[21.](#) Al-Kulayni, Usul al-Kafi, the Book of Reason and Ignorance, no. 14.

[22.](#) Ibid., no. 34.

[23.](#) Ibid., the Book of Faith and Disbelief, "Bab al-hubb fi Allah wa al-bughd fi Allah", No. 6, p. 126.

[24.](#) Ibid, No. 5, p. 125.

[25.](#) Al-Majlisi, 1983, Kitab al-iman wal-kufr, "Bab al-hubb fi Allah wa al-bughd fi Allah", lxvi, p. 238.

[26.](#) Qur'an, 2: 257.

[27.](#) See also the verses: 8:29 & 20:123.

[28.](#) Obedience here does not mean inferiority. Even the Prophets had to obey their parents.

[29.](#) See also the verses: 5:55 and 59:7.

[30.](#) For a comprehensive list of non-Shi'a sources of this hadith, see numerous volumes of 'Abaqaat al-Anwaar by Mir Haamid Husayn al-Hindi (d. 1306 A.H.) and Al-Ghadiir by 'Abd al-Husayn al-Amini (d. 1390 A.H.).

[31.](#) For more information about this verse and some debates that have arisen by the verse among Shi'a and Sunni scholars refer to: Sharafud-Din, Abdul Husayn, Al-Muraja'at, translated from Arabic to English by Yasin T al-Jibouri, World Ahlul-bayt Islamic League (WABIL), pp. 173-180.

[32.](#) Ijtihad is a very demanding qualification and involves deep knowledge of several disciplines and mastering several skills. Nowadays it usually takes around twenty years or even more of hard study to become a well-established mujtahid. However, the time taken is somewhat dependant on one's talents. Thus, it becomes clear that in the Shi'i thought respect for and obedience to the faqih is respect for and obedience to knowledge and piety that qualify someone to have such a position and not to the person as such. The Shi'a follow the most knowledgeable and the most pious jurist, since he is the person who would be most likely to represent the views of the Prophet and the Imams.

[33.](#) The methodology of understanding religious rulings from the sources is well studied in the science of the principles of jurisprudence (usul al-fiqh).

[34.](#) We say most of the time because during this period it was not always possible to refer to the Imams (AS), especially when they were under house arrest, e.g. the 10th and 11th Imams (AS), and the Shi'a had no easy access to them. Or sometimes the Shi'a were living in some cities far away.

[35.](#) Ayatollah Khomeini, Islam and Revolution, pp. 62-62.

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